

SYNTHETIC TRAINING OPINION — NOT ISSUED BY ANY COURT —
NONPRECEDENTIAL EXERCISE

UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

No. SYN-26-1427

ASTERGLEN FREIGHT SOFTWARE, INC., Plaintiff–Appellant,

v.

COPPER KESTREL LOGISTICS, LLC, and MERIDIAN SILT HOLDINGS, LLC,
Defendants–Appellees.

Submitted on briefs: June 3, 2026 Decided in exercise: June 8, 2026

Before COMPOSITE JURIST ALDER, COMPOSITE JURIST ROWAN, and COMPOSITE
JURIST VALE.

Dismissed and remanded by synthetic per curiam exercise opinion.

PER CURIAM (fictional composite):

Asterglen appeals a separate partial judgment dismissing its contract claim against Copper Kestrel. A tortious-interference claim against Meridian Silt and Copper Kestrel's contract counterclaim remain pending. Before considering the merits, we must determine whether the district court entered a final decision within 28 U.S.C. § 1291.

Federal Rule of Civil Procedure 54(b) provides a limited path to final judgment on fewer than all claims or parties. It permits the district court to direct entry "only if" the court expressly determines that there is no just reason for delay. The district court must first determine that an individual claim has been finally disposed and then make the no-just-reason determination. *Kinsale Insurance Co. v. JDBC Holdings, Inc.*, 31 F.4th 870, 873–74 (4th Cir. 2022).

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The January 12 order dismissed Count I with prejudice. Asterglen then moved for Rule 54(b) entry, expressly requesting the no-just-reason determination and case-specific findings. Appellees opposed and warned that a bare grant would be insufficient.

The February 4 order stated in full, as relevant: "Plaintiff's Motion for Entry of Partial Final Judgment Under Federal Rule of Civil Procedure 54(b) ... is GRANTED. The Clerk is DIRECTED to enter judgment ... on Count I." The separate judgment entered judgment on Count I and noted that Count II and the counterclaim remained. Neither document expressly determined there was no just reason for delay. No oral findings exist.

Asterglen contends the grant incorporated its requested determination. But the rule requires the court to determine the matter expressly. The order neither incorporates the motion nor adopts its contested assertions. A party's request cannot substitute for the court's determination.

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The official unpublished disposition in *McPherson v. Patton*, No. 23-1938, slip op. at 4–7 (4th Cir. Oct. 15, 2024), involved the same structural omission: a district court granted a Rule 54(b) motion and entered a partial judgment without expressly finding no just reason for delay. The court dismissed and remanded. We do not treat that disposition as binding precedent; its analysis is persuasive because it follows Rule 54(b)'s text and *Kinsale*'s published synthesis.

Rule 54(b) otherwise provides that a decision resolving fewer than all claims or parties does not end the action and may be revised before entry of a judgment adjudicating all claims and rights. Because the express condition was not satisfied, the purported partial judgment did not create a final decision under § 1291.

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We therefore dismiss rather than retain jurisdiction for findings. Dismissal leaves the January 12 partial summary-judgment order in place; we do not vacate or review that order's contract analysis. Count II and the counterclaim remain for the district court.

Because the dispositive issue is authoritatively addressed and the briefs and appendix adequately present the facts and legal contentions, the fictional panel unanimously concludes oral argument would not significantly aid the decisional process. See Fed. R. App. P. 34(a)(2). The simulation argument configuration remains available as a counterfactual training mode, not as a docket fact.

The appeal is dismissed for lack of jurisdiction and the matter remanded for further proceedings.

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DISMISSED AND REMANDED.

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